

Court No. - 32

Case :- WRIT - C No. - 40374 of 2019

Petitioner :- Urmila Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Krishna Kumar Singh

**Counsel for Respondent :- C.S.C.,Mahboob
Ahmad**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

Heard learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for the Electricity Department and perused the record.

This writ petition, inter alia, has been filed for the following reliefs:

"i. To, issue a writ, order or direction in the nature of certiorari to quash the impugned order dated 6.11.2019 passed by the respondent no. 3 (Annexure no. 7).

ii. To, issue a writ, order or direction in the nature of mandamus directing the respondents to connect the electric connection of the petitioner to the electric pole situated nearest to the petitioner house."

At the very outset, Sri Mahboob Ahmad, learned counsel for the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 7.10 of the U.P. Electricity Supply Code, 2005 to approach the Consumer Grievance Redressal Forum to ventilate her grievances, which is gainfully reproduced herein below:

"7.10. Consumer Grievance Redressal Forum and Ombudsman:

(i) The Licensee shall set up Consumer Grievance Redressal Forum in accordance with the UPERC (Consumer Grievance

Redressal Forum and Ombudsman) Regulations, 2003, as amended from time to time. The name/addresses and contact telephone numbers of the forum shall be mentioned in the electricity bill and also displayed in the web site of the licensee/Forum.

(ii) Any consumer aggrieved by any action of the Licensee, in respect of the matters mentioned in clauses 7.7.1 to 7.7.5 or those covered under the said Regulations may file a complaint with the Licensee.

(iii) If the Licensee fails to settle the complaint of the consumer within the time limits specified in this Code or otherwise provided in the said Regulations, or the consumer is not satisfied by the decision of the licensee, the consumer may file a complaint in the Consumer Grievance Redressal Forum as per the specified procedure under the said Regulations.

(iv) Any consumer, aggrieved by non-redressal of his grievances by the Consumer Grievance Redressal Forum, may make a representation for the redressal of his grievance to an Ombudsman as designed/appointed by the Commission in accordance with the procedure specified in UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003."

Learned counsel for the petitioner could not dispute the contention made by the learned counsel for the Electricity Department.

Considering the facts and circumstances of the case, petitioner is granted liberty to approach the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005 for redressal of her grievances and in case, petitioner moves a representation/application along with a certified copy of this order within two weeks from today, the same shall be considered and decided by the said authority by a reasoned order in accordance with law expeditiously preferably within three months from the date of receipt of the certified copy of the order of this Court.

With the above observation, the petition is

disposed of.

Order Date :- 7.12.2019

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